



Birthday Visit Participation Waiver, Assumption of Risk & Consent

These Birthday Party Booking Terms & Conditions ("Terms") apply to all birthday party bookings at Little Scientist Ltd ("Little Scientist"). By making or confirming a booking, the booking host ("Host") agrees to be bound by these Terms.

1. BOOKING OPTIONS

Birthday parties may be booked as either:

1.1 Non-Exclusive Booking

The Little Scientist facility remains open to other visitors during the booking. The Host and invited guests may use the facilities and activities included in the selected birthday package.

1.2 Exclusive Booking

The Little Scientist facility, or the designated party area and facilities specified in the booking confirmation, shall be reserved exclusively for the Host and invited guests during the agreed booking period. The applicable exclusive-booking fee shall be payable.

1.3 The scope, duration, facilities, number of guests and other inclusions applicable to the booking shall be stated in the booking confirmation.

2. BOOKING AND DEPOSIT

2.1 A **50% non-refundable deposit** is required to secure the booking date.

2.2 A booking is confirmed only upon receipt of the required deposit and written confirmation by Little Scientist.

2.3 For **non-exclusive bookings**, the balance of the booking fee must be paid no later than **fourteen (14) days before the event**.

2.4 For **exclusive bookings**, the balance of the booking fee must be paid no later than **twenty-one (21) days before the event**.



2.5 Little Scientist reserves the right to release a booking date where the required payment has not been received by the applicable deadline.

3. GUEST NUMBERS

3.1 The Host must provide the expected number of children and adults at the time of booking.

3.2 Final guest numbers must be confirmed no later than **fourteen (14) days before the event**, unless otherwise stated in the booking confirmation.

3.3 Additional guests arriving on the day of the event may be admitted only subject to available capacity and payment of the applicable additional fees before entry.

3.4 Little Scientist reserves the right to refuse admission to additional guests where the applicable capacity has been reached.

4. SUPERVISION OF CHILDREN

4.1 The Host remains responsible for the supervision, safety and conduct of all children attending the party.

4.2 Parents, guardians or other adults accompanying children must provide appropriate supervision throughout the event.

4.3 Little Scientist staff facilitate activities and operate the facilities but do not provide individual babysitting or one-to-one supervision of children.

4.4 Children must remain under the supervision of their parent, guardian or accompanying responsible adult unless participating in an activity specifically supervised by Little Scientist staff.

4.5 The Host shall ensure that all guests follow Little Scientist's safety instructions and site rules.

5. SAFETY AND USE OF FACILITIES

5.1 All guests must comply with safety instructions, warning signs and reasonable directions given by Little Scientist staff.

5.2 Exhibits, equipment and facilities must be used only for their intended purpose and in accordance with the instructions provided.



5.3 Running in restricted areas, climbing on unauthorised structures, tampering with equipment or engaging in any unsafe behaviour is prohibited.

5.4 Little Scientist may restrict or stop a guest's participation in an activity where it reasonably considers that the guest's behaviour presents a safety risk.

5.5 Little Scientist may require any guest whose conduct presents a serious safety, security or disruption risk to leave the premises.

6. FOOD AND BEVERAGES

6.1 Food and non-alcoholic beverages may be brought onto the premises only in accordance with Little Scientist's applicable party rules and booking arrangements.

6.2 The Host is responsible for ensuring that food and beverages brought onto the premises are safe, properly stored and suitable for the intended guests.

6.3 The Host shall inform guests of any known food allergies or dietary requirements and shall take appropriate precautions.

6.4 Little Scientist is not responsible for illness, allergic reactions or other consequences arising from food or beverages supplied or brought onto the premises by the Host or guests, except to the extent caused by the negligence, wilful misconduct or breach of duty of Little Scientist Ltd, its employees or agents.

6.5 Alcoholic beverages, nicotine products, illegal drugs and other intoxicating substances are strictly prohibited on the premises.

7. MUSIC AND ENTERTAINMENT

7.1 Playing music or amplified sound is prohibited unless expressly authorised by Little Scientist in advance.

7.2 Any external entertainer, activity provider, equipment supplier or other third party engaged by the Host must be approved by Little Scientist in advance and must comply with all applicable site rules and safety requirements.



8. DECORATIONS AND PROPERTY

8.1 Decorations may only be installed in areas and using methods approved by Little Scientist.

8.2 Nothing may be nailed, screwed, stapled, glued or otherwise permanently attached to walls, floors, exhibits, structures or other Little Scientist property without prior approval.

8.3 The Host shall remove all decorations, personal items and other materials brought onto the premises at the end of the event unless otherwise agreed.

8.4 The Host shall be responsible for the reasonable cost of repairing or replacing Little Scientist property damaged by the Host or any guest through intentional, reckless or negligent conduct.

9. EVENT DURATION AND OVERTIME

9.1 The booking is valid only for the date and time stated in the booking confirmation.

9.2 The Host must ensure that all guests vacate the relevant party area and premises at the agreed end time.

9.3 Events extending beyond the allocated booking period may incur additional charges at Little Scientist's prevailing overtime rate.

9.4 Continued use of the facilities after the agreed end time is subject to availability and approval by Little Scientist.

10. CANCELLATION BY THE HOST

10.1 The 50% deposit is non-refundable.

10.2 Cancellation **more than fourteen (14) days before the event** shall result in forfeiture of the deposit. Any amount paid above the deposit shall be refunded.

10.3 Cancellation **fourteen (14) days or less before the event** shall result in forfeiture of all amounts paid.

10.4 Failure to attend without prior notice shall be treated as a cancellation and shall result in forfeiture of all amounts paid.



10.5 Rescheduling may be permitted at the discretion of Little Scientist and is subject to availability.

10.6 A rescheduled booking may be subject to the applicable booking rates and any additional costs arising from the change.

11. CANCELLATION BY LITTLE SCIENTIST

11.1 Little Scientist may cancel or postpone an event where circumstances make it unsafe, impracticable or impossible to host the event.

11.2 Where Little Scientist cancels an event for reasons within its reasonable control, the Host shall be offered either:

- an alternative available date; or
- a refund of amounts paid for the cancelled booking.

12. FORCE MAJEURE

12.1 Little Scientist shall not be liable for failure, cancellation, postponement or interruption of an event caused by circumstances beyond its reasonable control, including natural disasters, extreme weather, fire, flood, epidemic or pandemic restrictions, government action, civil unrest, major security incidents, utility failure or other circumstances making the event unsafe or impracticable.

12.2 In such circumstances, Little Scientist may offer an alternative date or, where appropriate, a refund in accordance with the circumstances of the cancellation.

13. MEDICAL AND EMERGENCY ASSISTANCE

13.1 The Host should inform Little Scientist in advance of any relevant medical, accessibility or other special requirements known to the Host that may reasonably affect a child's safe participation.

13.2 Little Scientist staff do not provide medical diagnosis or treatment.

13.3 In the event of an accident, illness or other emergency, Little Scientist will take reasonable immediate steps to secure the person's safety and obtain appropriate emergency assistance.

13.4 The Host remains responsible for contacting the child's parent or guardian, where applicable, and for arranging any necessary medical follow-up.



14. PHOTOGRAPHY AND RECORDING

14.1 Little Scientist may use CCTV and other recording systems for security, safety and operational purposes in accordance with applicable law.

14.2 Little Scientist will not ordinarily photograph or video individual birthday-party guests for promotional purposes.

14.3 The Host and guests are responsible for obtaining any consent required for photographs or recordings that they make of other guests or children and for handling such images and recordings in accordance with applicable privacy and data-protection requirements.

14.4 Little Scientist may separately obtain consent where it wishes to use identifiable photographs or recordings of guests for promotional or other purposes.

15. PERSONAL BELONGINGS

15.1 Guests are responsible for their personal belongings brought onto the premises.

15.2 Little Scientist is not responsible for loss, theft or damage to personal belongings, except to the extent caused by the negligence, wilful misconduct or breach of duty of Little Scientist Ltd, its employees or agents.

16. LIABILITY AND INDEMNITY

16.1 The Host acknowledges that participation in interactive exhibits, movement activities, demonstrations and educational experiences involves inherent risks.

16.2 To the extent permitted by law, the Host agrees to indemnify and hold harmless Little Scientist Ltd, its directors, employees, agents and contractors against claims, losses, liabilities, damages and reasonable legal costs arising from:

- inadequate supervision by the Host or accompanying adults;
- intentional, reckless or negligent acts or omissions of the Host or guests;
- failure to comply with reasonable safety instructions or site rules; or
- damage caused to Little Scientist property by the Host or guests.

16.3 The indemnity in clause 16.2 shall not apply to the extent that a claim results from the negligence, gross negligence, wilful misconduct or breach of duty of Little Scientist Ltd, its employees, agents or contractors.



16.4 Nothing in these Terms shall exclude or limit any liability that cannot lawfully be excluded or limited under the laws of Kenya.

17. PERSONAL DATA

17.1 Little Scientist and the Host shall handle personal information in accordance with applicable Kenyan data protection and privacy laws.

17.2 The Host shall provide Little Scientist only with information reasonably necessary for the safe and effective administration of the booking.

18. GOVERNING LAW AND DISPUTES

18.1 These Terms and any booking made under them shall be governed by and interpreted in accordance with the laws of the **Republic of Kenya**.

18.2 Any dispute arising from these Terms shall, where possible, first be addressed through good-faith discussions between the Host and Little Scientist.

18.3 If the dispute cannot be resolved through good-faith discussions, the parties submit to the jurisdiction of the courts in Machakos, Kenya.

19. SEVERABILITY

19.1 If any provision of these Terms is found to be invalid, unlawful or unenforceable, that provision shall, to the extent necessary, be severed or modified, and the remaining provisions shall continue in full force and effect.



BIRTHDAY PARTY BOOKING CONFIRMATION

Host's Name: _____

Contact Number: _____

Email: _____

Event Type:

- ☐ Non-Exclusive Booking
☐ Exclusive Booking

Event Date: _____

Start Time: _____

End Time: _____

Number of Children: _____

Number of Adults: _____

Fee per Child: KSh _____

Fee per Adult: KSh _____

Exclusive Booking Fee (if applicable): KSh _____

Total Booking Fee: KSh _____

50% Deposit Paid: KSh _____

Balance Due: KSh _____

 Sabaki Estate, Mombasa Road

 0700101425



Special Requirements / Additional Information:

ACCEPTANCE

By signing below, the Host confirms that they:

- have read and accepted these Birthday Party Booking Terms & Conditions;
- accept responsibility for the supervision and conduct of children attending the event;
- agree to comply with Little Scientist's safety and site rules;
- will inform Little Scientist of relevant medical, accessibility or special requirements known to them;
- accept responsibility for damage caused by guests in accordance with these Terms; and
- confirm that the information provided in this Booking Confirmation is accurate.

FOR LITTLE SCIENTIST LTD

Name: _____

Designation: _____

Signature: _____

Date: _____

BOOKING HOST

Name: _____

Signature: _____

Date: _____